

1. OVERVIEW

- 1.1 This Service Pack sets out certain Services to be performed by Deliveroo.
- 1.2 This Service Pack is governed by and entered into pursuant to Deliveroo's Restaurant Terms and Conditions, a copy of which has been provided to the Restaurant (the "**Terms**"). The agreement between the parties comprises this Service Pack and the Terms (the "**Agreement**").
- 1.3 In the event of, and only to the extent of, any inconsistency between this Service Pack and the Terms, the provisions of the Terms shall prevail (except to the extent expressly set out otherwise in this Service Pack).

2. SERVICE DESCRIPTION

- 2.1 Deliveroo shall provide to the Restaurant the following services in relation to each of the Sites set out at the start of this Service Pack:
- 2.1.1 launch and display of the Restaurant and Menu Items on the Platform;
- 2.1.2 facilitation of a real-time ordering process which will enable Customers to place Orders via the Platform;
- 2.1.3 the Delivery Services; and
- 2.1.4 the Customer Support Services,
- (the "**Core Services**").

3. APPOINTMENT AS AGENT

- 3.1 The Restaurant appoints Deliveroo as its agent to solicit Orders in the Territory on the terms of the Agreement and Deliveroo accepts the appointment on those terms. Deliveroo is authorised by the Restaurant to solicit, promote and conclude contracts for Orders in the name of and on behalf of the Restaurant.
- 3.2 The Restaurant appoints Deliveroo as its agent to collect Customer payments owed to the Restaurant. Deliveroo shall be authorised to take such steps as it considers necessary to obtain such funds and shall hold such funds for and on behalf of the Restaurant. The Restaurant acknowledges and represents that where a Customer pays any funds due to the Restaurant to Deliveroo, Deliveroo shall receive such payment on the Restaurant's behalf and that receipt shall constitute settlement of the relevant Customer's debt to the Restaurant.

4. EXCLUSIVITY

- 4.1 For the purposes of this paragraph 4, "**Restricted Person**" means any person that:
- 4.1.1 performs, provides or arranges the same or similar services as the Core Services, including but not limited to:
- (a) online food or beverage marketplaces;
- (b) food or beverage delivery and/or collection services; and/or
- (c) collection or delivery-only kitchens (including but not limited to mobile kitchens); or
- 4.1.2 has substantially the same purpose or business model as Deliveroo.
- 4.2 The Restaurant agrees that, for the Term, it will not:
- 4.2.1 enter into any agreement or arrangement, approach for talks or negotiations, or otherwise have any dealings with any Restricted Person; or
- 4.2.2 acquire or maintain any financial interest or involvement (whether direct or indirect) in or with any Restricted Person that operates within the Territory.
- 4.3 Deliveroo may, in addition to other remedies available to it under the Agreement, take the following action as a result of any breach of paragraph 4.2 (to be determined by Deliveroo in its sole discretion):
- 4.3.1 increase the Core Services Fee;
- 4.3.2 remove the Restaurant from the Platform;
- 4.3.3 cease all marketing activities on behalf of the Restaurant;

- 4.3.4 restrict the Restaurant from procuring any of the Services;
- 4.3.5 suspend the Services in accordance with paragraph 13.3 of this Service Pack; and/or
- 4.3.6 terminate the Agreement and/or any Other Service Pack (if applicable) with immediate effect by giving written notice to the Restaurant.

5. EQUIPMENT

- 5.1 The Joining Fee covers the launch by Deliveroo of the Restaurant on the Platform, the licensing of the Software and (if applicable) the purchase and installation costs of the Equipment.
- 5.2 Without prejudice to clause 4.1(d) of the Terms, the Restaurant shall comply with the terms of any Deliveroo policy in relation to the Equipment (if this is provided by Deliveroo).
- 5.3 The Restaurant shall purchase all Equipment required for the purpose of receiving the Services directly from Deliveroo unless the Cover Sheet expressly provides that the Restaurant shall use its own Equipment.
- 5.4 Risk in any Equipment supplied by Deliveroo shall pass from Deliveroo to the Restaurant upon installation of the Equipment. Title to any Equipment supplied by Deliveroo shall pass to the Restaurant once Deliveroo has received payment in full of the Joining Fee.
- 5.5 The Restaurant shall promptly inform Deliveroo of any faults with, or damage to, any Equipment supplied by Deliveroo, and shall allow Deliveroo effective access to the Site(s) at any time to inspect, clean, repair, replace or remove such Equipment. Deliveroo shall be entitled to charge a reasonable fee for repairing or replacing any Equipment supplied by Deliveroo.
- 5.6 Where the Restaurant uses its own Equipment, the Restaurant shall be solely responsible for obtaining the Equipment. If the restaurant purchases the Equipment from a third party, then except where any defect or damage is caused by Deliveroo, Deliveroo shall have no responsibility for, or liability in relation to, such Equipment and the Restaurant shall be solely responsible for servicing and maintaining such Equipment (and for all associated costs) to ensure that it is fully operational and can accept Orders during the Restaurant's Opening Hours in accordance with the terms of this Agreement.
- 5.7 The Software shall at all times remain the property of Deliveroo or its licensors and the Restaurant has no rights other than the limited right to use it in accordance with the license set out in this paragraph 5.7. Deliveroo grants to the Restaurant a non-exclusive, non-transferrable, non-sublicensable, revocable licence to use the Software for the Term at the Site(s). The Restaurant shall;
- 5.7.1 not (and shall not permit any third party to) copy, adapt, reverse engineer, decompile, modify or make error corrections to the Software other than with Deliveroo's express prior written consent;
- 5.7.2 not (and shall not permit any third party to) breach, disable, tamper with, or develop or use any workaround for any security measure contained within the Software or otherwise do anything that disrupts the operation of the Software or the business of Deliveroo or any other person;
- 5.7.3 be solely responsible for maintaining the security and confidentiality of the Restaurant's access credentials and shall be responsible for all actions taken by any person using such access credentials; and
- 5.7.4 promptly implement any patches, updates, upgrades and/or new versions of the Software that Deliveroo may release from time to time.
- 5.8 The Restaurant acknowledges that Deliveroo may (at its sole discretion) release patches, updates, upgrades and/or new versions of the Software from time to time.
- 6. WHAT WE WILL DO**
- 6.1 In addition to Deliveroo's obligations set out at clause 3 of the Terms, Deliveroo shall use reasonable endeavours to:
- 6.1.1 subject to the payment by the Restaurant of the Joining Fee:

	(a) onboard the Restaurant onto the Platform. The Restaurant acknowledges and agrees that Deliveroo shall have the right to sub-contract any part of the onboarding process without the Restaurant's consent;	7.1.10	take into account any information relating to Customer allergies submitted along with the Order;
6.1.2	display the Restaurant and the Menu Items on the Platform as available for Orders;	7.1.11	ensure all Orders are packaged in such packaging as may be determined by the Restaurant acting reasonably to avoid tampering, to minimise spillage and maintain the Order at an appropriate temperature;
6.1.3	facilitate and implement a real-time ordering process which will enable Customers to place Orders on the Platform;	7.1.12	ensure that the Menu Items:
6.1.4	provide the Customer Support Services through a professionally manned telephone call and online support centre which shall be operative during the Opening Hours. The Customer Support Services shall be provided in an orderly and efficient manner at no further cost to the Restaurant;	(a)	correspond with the descriptions on the Platform (including indications that particular Menu Items are gluten free, nut free, or are suitable for vegetarians and/or vegans);
6.1.5	provide the Delivery Services to the Restaurant in relation to each Order;	(b)	are not harmful to health or the environment;
6.1.6	include Deliveroo in any and all promotions, discounts, special offers, etc. that the Restaurant offers in their physical establishment, online, or through other platforms, partners, service providers, suppliers, etc. It is at the discretion of Deliveroo to run any given Restaurant promotion or offer on the Deliveroo platform; and	(c)	have been properly cooked or prepared and are otherwise safe and fit for transportation and consumption;
6.1.7	procure that Riders perform the Delivery Services in a professional manner and with reasonable care and skill.	(d)	are safely, securely and otherwise appropriately packaged at all times (including as reasonably required to withstand the delivery process, if applicable to the Services); and
		(e)	are at an appropriate temperature for consumption by the Customer;
		7.1.13	ensure that each Order number on the Order packaging corresponds with the Order number provided by Deliveroo to the Restaurant before the Order is handed over to the relevant Rider; and
		7.1.14	provide each Customer with an official receipt (and a VAT receipt, if applicable) in respect of an Order, if the Customer so requests.
7. WHAT YOU WILL DO		8. DELIVEROO SERVICE LEVELS	
7.1	In addition to the Restaurant's obligations set out in clause 4 of the Terms, the Restaurant shall:	8.1	Deliveroo shall use reasonable endeavours to ensure:
7.1.1	procure and maintain in force such permits, certificates, registrations, licences and approvals and comply with all Applicable Law, regulations and industry best practices as are applicable to the Restaurant in carrying out its obligations in connection with the Agreement;	8.1.1	that the Menu Items are delivered within 10 minutes of the Target Delivery Time for at least 70% of all deliveries of Orders; and
7.1.2	pay to Deliveroo: (i) the Joining Fee; and (ii) the Core Service Fees;	8.1.2	that the Platform shall be available to the Restaurant and Customers no less than 98% of the time (calculated over a period of one calendar month), except for any scheduled downtime which has been notified to the Restaurant by Deliveroo in advance.
7.1.3	provide to Deliveroo all information, materials and assistance as is reasonably required by Deliveroo in order for Deliveroo to onboard the Restaurant to the Platform, including in relation to Menu Items and Opening Hours;	9. RESTAURANT SERVICE LEVELS	
7.1.4	provide Deliveroo with accurate descriptions of Menu Items (including any relevant allergen advice and applicable VAT amounts). Deliveroo and the Restaurant shall jointly determine the Menu Items to be displayed on the Platform. The Restaurant agrees that:	9.1	The Restaurant shall use reasonable endeavours to:
	(a) Deliveroo may edit descriptions of Menu Items as it deems reasonably fit for display on the Platform; and	9.1.1	reject less than 1% of all Orders received through the Platform (which shall exclude issues caused by errors in the Platform or otherwise caused by Deliveroo);
	(b) the prices for the Menu Items it provides for display on the Platform shall be the same as the prices for menu items published in the Restaurant's in-restaurant customer menu;	9.1.2	ensure that the relevant Menu Items are available for collection by Riders at the Site(s) at the time stipulated on the Software (the " Pick Up Time "). In any event the Restaurant shall ensure that the time for which a Rider may have to wait at the Site(s) (" Rider Held Time ") to pick up an Order shall be no longer than 5 minutes. The Rider Held Time shall be measured from the Pick Up Time (or if later, the time at which the Rider actually arrives at the relevant Site and notifies the relevant Restaurant staff of their arrival) to the time at which the Order is provided to the Rider by the Restaurant for delivery to the Customer; and
7.1.5	give Deliveroo not less than 3 days' written notice of any change and/or the discontinuance of any Menu Items and any change to the Opening Hours;	9.1.3	ensure that the Software on the Equipment is set as 'available' for Orders for 98% of the Opening Hours.
7.1.6	ensure that the relevant Menu Items are available to be ordered by a Customer during Opening Hours;	10. SHARED SERVICE LEVELS	
7.1.7	accept and reject Orders (as appropriate and in accordance with the Restaurant Service Levels). For each Order, the aggregate value of the Menu Items must reach Deliveroo's Minimum Order Value;	10.1	The parties shall use reasonable endeavours to ensure that the Rating remains at no less than 80% during the Term.
7.1.8	ensure that Orders are prepared promptly and in accordance with the timescales communicated by the Restaurant to the Customer via the Platform;	11. FEES, PRICING AND PAYMENT	
7.1.9	process and prepare Orders using reasonable skill, care and diligence and in accordance with best practice in the Restaurant's industry;	11.1	In consideration for performing the Services, Deliveroo shall be entitled to receive the Services Fees which shall be calculated in accordance with this paragraph 11. The Services Fees shall be subject to VAT at the prevailing rate. The Restaurant shall

cooperate with Deliveroo in order to enable it to comply with its VAT accounting obligations.

- 11.2 Notwithstanding the Services Fees, Deliveroo may, in its sole discretion, charge the Customer additional fees.
- 11.3 The first reference period for the calculation of the Services Fees (the “**First Period**”) will end on the Sunday prior to the next Calculation Day following the Commencement Date (the “**First Calculation Day**”). Services Fees will subsequently be calculated weekly on the subsequent Calculation Days by reference to consecutive periods of approximately the 7 days, ending on the Sunday immediately prior to such Calculation Days (each a “**Period**”).
- 11.4 If the Restaurant disagrees with an account statement, it must notify Deliveroo within 30 days of that statement or invoice otherwise it will be deemed accepted by the Restaurant.
- 11.5 For the purposes of this clause, a day shall be regarded as beginning at 00:00 UTC time and ending at 23:59 UTC time.
- 11.6 Within 2 Business Days of the First Calculation Day, or a subsequent Calculation Day (as the case may be), Deliveroo shall:
- 11.6.1 send or otherwise make available to the Restaurant a statement summarising the Menu Items ordered from the Restaurant during the First Period or during the relevant Period (as appropriate) (the “**Menu Items Amount**”);
- 11.6.2 send or otherwise make available to the Restaurant a statement summarising the corresponding amount due to the Restaurant, which shall be the Menu Items Amount less the Service Fees (the “**Restaurant Payment**”); and
- 11.6.3 authorise the transfer of the Restaurant Payment to the Restaurant by electronic bank transfer to a bank account in the Territory nominated by the Restaurant.
- 11.7 Deliveroo shall be responsible for setting the Minimum Order Value. Where the Minimum Order Value is not met, Deliveroo may charge the Customer an additional fee.
- 11.8 Notwithstanding the above, Deliveroo may make available, and the Restaurant may elect to apply, alternative options for the Period or the timing of the Restaurant Payment from time to time. In the event of any conflict between the terms of such alternative arrangements and these terms, the terms of such alternative arrangements shall prevail.

“**Calculation Day**” means the applicable Deliveroo standard day on which Deliveroo calculates payments to restaurants in the Territory.

12. LIABILITY

- 12.1 The Restaurant shall be solely responsible and liable for all claims against Deliveroo by Customers relating to, or arising (directly or indirectly) from or in connection with a breach by the Restaurant of paragraph 7.1.12 (save, in the case of paragraph 7.1.12(e) only, where, and to the extent applicable, Deliveroo fails to deliver the Menu Items to the Customer within 15 minutes of collection from the Restaurant).
- 12.2 Deliveroo shall be solely responsible and liable for any claims by Customers that:
- 12.2.1 the Menu Items have been spilled or crushed after pick up from the Restaurant (except to the extent this arises due to a failure by the Restaurant under paragraph 7.1.12(d)); and
- 12.2.2 the Menu Items are not at an appropriate temperature for consumption on delivery, as a consequence of having been delivered more than 15 minutes after collection from the Restaurant (save where, and to the extent that, this is as a result of:
- (a) the Restaurant’s breach of paragraph 7.1.12(d) or (e); or
- (b) the Restaurant failing to have any Menu Items ready for collection by a Rider in excess of 10 minutes after the designated collection time).

- 12.3 Subject to clauses 9.1 and 9.2 of the Terms:

- 12.3.1 Deliveroo’s total liability to the Restaurant, whether arising in contract, tort (including negligence and breach of statutory duty) or otherwise arising under or in connection with the Agreement shall not exceed AED500,000; and
- 12.3.2 the Restaurant’s total liability to Deliveroo:
- (a) in respect of the indemnity in clause 8.6 of the Terms, shall be unlimited; and
- (b) in respect of all other liabilities, whether arising in contract, tort (including negligence and breach of statutory duty) or otherwise arising under or in connection with the Agreement shall not exceed AED500,000.
- 12.4 The Restaurant shall indemnify and keep indemnified Deliveroo against all Losses suffered or incurred by Deliveroo in respect of the matters for which the Restaurant is responsible or liable under paragraph 12.1.
- 12.5 Deliveroo shall indemnify and keep indemnified the Restaurant against all Losses suffered or incurred by the Restaurant in respect of the matters for which Deliveroo is responsible or liable under paragraph 12.2, provided that Deliveroo shall not be liable for any Losses sustained or incurred by the Restaurant that arise directly or indirectly from the Restaurant’s prevention or delay.
- 12.6 If paragraphs 12.1 or 12.2 apply, the Customer may be entitled to compensation from Deliveroo. The Customer’s eligibility for, and the level of, such compensation shall be determined by Deliveroo acting reasonably in accordance with the Complaints Matrix. Subject to clause 9.1 and 9.2 of the Terms, this shall be the Customer’s sole remedy in relation to paragraphs 12.1 and 12.2.

13. TERMINATION

- 13.1 Unless terminated earlier in accordance with clause 11 of the Terms or in accordance with the terms of this Service Pack, the Agreement shall continue for the Initial Term and shall automatically extend for successive Extension Terms at the end of the Initial Term and at the end of each Extension Term, provided that the total Term of the Agreement shall not exceed a total of 5 years from the Commencement Date.
- 13.2 In addition to the termination rights of the parties set out in clause 11 of the Terms or this Service Pack, without affecting any other right or remedy available to it:
- 13.2.1 Deliveroo may terminate the Agreement with immediate effect by giving written notice to the Restaurant:
- (a) if the Restaurant breaches paragraph 5.7 (*Equipment*) of this Service Pack;
- (b) if the Restaurant breaches paragraph 7.1.1 or 7.1.12 (*What You Will Do*) of this Service Pack; or
- (c) in accordance with paragraph 14.2 (*Force Majeure Event*) of this Service Pack;
- 13.2.2 either party may terminate the Agreement on giving the other party not less than 30 days’ written notice following the Initial Term; and
- 13.2.3 either party may terminate the Agreement by giving prior written notice to the other party if any undisputed sum owing to that party under any of the provisions of the Agreement is not paid within 30 days of the due date for payment.
- 13.3 Without affecting any other right or remedy available to it, if the Restaurant is in material breach of its obligations under the Agreement at any time, Deliveroo reserves the right to suspend the provision of the Services (in whole or in part). Deliveroo shall be entitled to maintain the suspension until the Restaurant is able to remedy the breach and

demonstrate its future ability to comply with the relevant obligation to Deliveroo's reasonable satisfaction.

- 13.4 The parties acknowledge and agree that a court order will not be required to give effect to and termination of this Agreement.

14. FORCE MAJEURE

- 14.1 If Deliveroo or the Restaurant (as the case may be) is unable to carry out any of its obligations under the Agreement due to a Force Majeure Event, the Agreement shall remain in effect but the obligations in question (and the other party's corresponding obligations, if any, under the Agreement) shall be suspended for so long as the Force Majeure Event continues or 1 month, whichever is the shorter, provided that:
- 14.1.1 the suspension of the performance is of no greater scope than is necessitated by the Force Majeure Event;
 - 14.1.2 the party suffering the Force Majeure Event immediately gives the other party written notice of the occurrence and its expected duration, and continues to furnish regular reports while the Force Majeure Event continues and notifies the other party immediately when it ceases; and
 - 14.1.3 that party uses all reasonable efforts to remedy its inability to perform and to mitigate the effects of the Force Majeure Event.
- 14.2 Without affecting any other right or remedy available to it, if a Force Majeure Event continues for more than 1 month, the other party may terminate the Agreement immediately on serving written notice to that effect on the party suffering the Force Majeure Event.

15. DEFINITIONS

Unless the context otherwise requires, or otherwise specified, capitalised terms used in this Service Pack shall have the meaning given to them in Schedule 1 to the Terms. In addition, the following defined terms shall have the following meanings in this Service Pack:

"Annual Fee" means the annual fee payable by the Restaurant to Deliveroo during the Term, as set out in the Cover Sheet.

"Commencement Date" has the meaning given to it in the Cover Sheet to the Service Pack.

"Core Services Fee" has the meaning given to it in the Cover Sheet to the Service Pack.

"Customer Support Services" means the support services provided by Deliveroo to the Customer to deal with complaints or enquiries in relation to Orders.

"Deliveroo Service Levels" means the service levels outlined in paragraph 8 of this Service Pack.

"Editions Service Pack" means the Service Pack for the Editions Services.

"Editions Services" means the Services as more fully described in the Editions Service Pack.

"Equipment" means the touch screen terminal and thermal printer, or such other equipment or device, supplied by Deliveroo to the Restaurant or by the Restaurant itself (as specified in the relevant Service Pack), for the purposes of accepting and labelling Orders (excluding the Software).

"Extension Term" means a period of 12 months commencing on the day after the end of the Initial Term or the immediately preceding Extension Term (as the context requires) or, if the period from the end of such term to the date falling 5 years after the Commencement Date is less than 12 months, that period.

"Force Majeure Event" means any cause beyond the reasonable control of that party including but not limited to internet and online system failure, power failure, fire, flood, storms, earthquakes, acts of terrorism, acts of war, acts of God, acts of government authority, strikes or other labour disturbances.

"Initial Term" has the meaning given to it in the Cover Sheet to this Service Pack.

"Minimum Order Value" means the minimum order value set by Deliveroo as communicated by Deliveroo to the Restaurant from time to time.

"Opening Hours" means the times and days during which the Restaurant may accept or reject Orders.

"Other Service Pack" means any Service Pack between Deliveroo and the Restaurant, including the Editions Service Pack.

"Restaurant Service Levels" means the service levels outlined in paragraph 9 of this Service Pack.

"Rider" means the delivery riders authorised by Deliveroo to carry out the Delivery Services.

"Joining Fee" means the fee paid by the Restaurant to Deliveroo set out in the Cover Sheet to this Service Pack.

"Site" means as defined in the Cover Sheet to this Service Pack.

"Target Delivery Time" means the Order arrival time displayed to the Customer on the Platform.

"Term" means the period from the Commencement Date until the termination or expiry of the Agreement for whatever reason.

"Territory" means as defined in the Cover Sheet to this Service Pack.

"VAT" means any tax imposed in compliance with Federal Decree Law No. (8) 2017.